MCS-323	INTELLECTUAL PROPERTY RIGHTS	L T P 3 1 0	4 Credits

Course Objectives:

CO1	Understanding, defining and differentiating different types of intellectual properties (IPs) and their roles in contributing to organizational competitiveness
CO2	Understanding the Framework of Strategic Management of Intellectual Property (IP)
CO3	Appreciating and appraising different IP management (IPM) approaches and describing how pioneering firms initiate, implement and manage IPM programs
CO4	Explaining how to derive value from IP and leverage its value in new product and service development
CO5	Exposing to the Legal management of IP and understanding of real life practice of IPM

MODULE I

Philosophical Aspects of Intellectual Property Laws, Basic Principles of Patent Law, Patent Application procedure, Drafting ofa Patent Specification, Understanding Copyright Law,

MODULE II

Basic Principles of Trade Mark, Basic Principles of Design Rights, International Background of Intellectual Property ,

MODULE III

Paper H-Ownership and Enforcement of Intellectual Property Rights The thrust of study of this paper would be on the following areas

1. Patents-Objectives, Rights, Assignments, De fences incase of Infringement

2. Copyright-Objectives, Rights, Transfer of Copyright, work of employment Infringement, De fences for in fiingement

3. Trademarks-Objectives, Rights, Protection ofgoodwill, Infringement, Passing off, De fences.

4. Designs-Objectives, Rights, Assignments, Infringements, De fences of Design Infringement

5. Enforcement of Intellectual Property Rights - Civil Remedies, Criminal Remedies, Border Security measures.

6. Practical Aspects of Licencing - Benefits, Determinative factors, important clauses, licensing clauses.

Paper Ill-Information Technology Related Intellectual Property Rights
Focus of Study will be on the following areas.

A. Computer Software and Intellectual Property-Objective, Copyright Protection, Reproducing, De fences, Patent Protection.

B. Database and Data Protection-Objective, Need for Protection, UK Data ProtectionAct, 1998, US Safe Harbor Principle, Enforcement.

C. Protection of Semi-conductor Chips-Objectives Justification ofprotection, Criteria, Subject-matter of Protection, WIPO Treaty , TRIPs, SCPA.

D. Domain Name Protection -Objectives, domain name and Intellectual Property, Registration of domain names, disputes under Intellectual Property Rights, Jurisdictional Issues, and International Perspective.

References:

1. *Peter Weill , Jeanne Ross "IT Governance: How Top Performers Manage IT Decision Rights for Superior Results"*
2. *Jeanne W. Ross "Enterprise Architecture As Strategy: Creating a Foundation for Business Execution"*
3. *Peter Weill "IT Savvy: What Top Executives Must Know to Go from Pain to Gain"*

Course Outcome:

CO1	Identify different types of Intellectual Properties (IPs), the right of ownership, scope of protection as well as the ways to create and to extract value from IP.
CO2	Recognize the crucial role of IP in organizations of different industrial sectors for the purposes of product and technology development
CO3	Identify activities and constitute IP infringements and the remedies available to the IP owner and describe the precautious steps to be taken to prevent infringement of proprietary rights in products and technology development.
CO4	Be familiar with the processes of Intellectual Property Management (IPM) and various approaches for IPM and conducting IP and IPM auditing and explain how IP can be managed as a strategic resource and suggest IPM strategy.
CO5	Be able to anticipate and subject to critical analysis arguments relating to the development and reform of intellectual property right institutions and their likely impact on creativity and innovation.